

NOTICE: THIS DOCUMENT CONTAINS SENSITIVE DATA
AVISO: ESTE DOCUMENTO CONTIENE INFORMACIÓN
CONFIDENCIAL



Statement of Inability to Afford Payment of Court Costs or an Appeal Bond

Declaración sobre Incapacidad de Pago de Costas de Tribunal o de una Fianza de Apelación

Cause Number
Número de Caso

The Clerk's office will fill in the Cause Number when you file this form.

El Secretario del Tribunal anotará el Número de Caso cuando usted presente este formulario.

v.

Copy information listed at the top left of the petition here.

Copie aquí la información ubicada en la parte superior izquierda del escrito de la demanda.

Copy information listed at the top right of the petition here.

Copie aquí la información ubicada en la parte superior derecha del escrito de la demanda.

Court Number
Número del Tribunal

_____, Texas
County
Condado

- ☐ District Court
Tribunal de Distrito
- ☐ County Court
Tribunal del Condado
- ☐ County Court at Law
Tribunal Estatutario
- ☐ Justice Court
Juzgado de Paz
- ☐ Probate Court
Juzgado Sucesorio

1. Your Information / Su Información

- My full legal name is / **Mi nombre legal completo es**
Maria-Alejandra O'Shaughnessy-Whitfield

First Middle Last / Nombre de Pila Segundo Nombre Apellido

- My date of birth is / **Mi fecha de nacimiento es**
12/31/1972

Month Day Year / Mes Día Año

- My address is / **Mi dirección es**

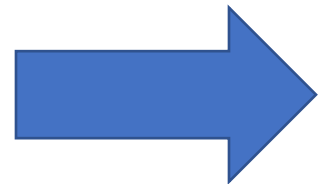
Home / **Domicilio** 1188 Upper Notch Crossing Road, Apartment 14B, Corpus Christi, Texas 78418-2214

Mailing / **Dirección Postal**

- My phone number / **Mi número telefónico** (361) 555-0199 ext. 4417

- My email I check often / **Mi correo electrónico que reviso con frecuencia**
maria.alejandra.oshaughnessy.whitfield@longmailexample.org

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Pase a la siguiente página

2. About My Dependents / Mis Dependientes

"The people who depend on me financially are listed below." **Use initials only for children under 18.** If needed, attach a separate piece of paper to list more dependents.

"Las personas a continuación dependen económicamente de mí." **Use iniciales para los menores de 18 años** y, si es necesario, anexe una hoja por separado para enumerar a todos sus dependientes.

Name Nombre	Age Edad	Relationship to me Parentesco Conmigo

3. Are you represented by Legal Aid? ¿Está siendo representado por alguna entidad de asistencia legal?

Check only one box. Seleccione solo una casilla.

☐ I am being represented in this case for free by an attorney who works for a legal aid provider or who received my case through a legal aid provider. I have attached the certificate the legal aid provider gave me as "Exhibit: Legal Aid Certificate."

Me está representando gratuitamente un abogado que trabaja para una entidad de asistencia legal o que recibió mi caso de una entidad de asistencia legal. El certificado que la entidad de asistencia legal me entregó lo adjunto bajo el título, "Anexo: Certificado de Asistencia Legal."

or / o

☐ I am not represented by legal aid.

No me está representando ninguna entidad de asistencia legal.



4. Public Benefits / Beneficios de Asistencia Pública

- Do you or any of your dependents receive public benefits?
¿Recibe usted o sus dependientes beneficios de asistencia pública?

☐ Yes / *Sí*

☐ No / *No*

- If you answered yes, check all that apply and attach proof to this form, such as a copy of an eligibility form or check.

Si respondió con un Sí, marque todas las casillas que apliquen y adjunte a este formulario comprobantes, tales como una copia de la carta autorizando que reciba estos beneficios o una copia del cheque que recibe.

☐ Food stamps/SNAP
Cupones de comida/SNAP

☐ TANF

☐ Medicaid

☐ CHIP

☐ SSI/SSDI

☐ WIC

☐ Lifeline

☐ Public Housing or Section 8 Housing
Asistencia de Vivienda / Programa de Vivienda bajo Sección 8

☐ Low-Income Home Energy Assistance
Asistencia con Energía Eléctrica

☐ Community Care via HHS
Ayuda Comunitaria bajo HHS

☐ LIS in Medicare ("Extra Help")
Subsidio Adicional de Medicare bajo el Programa LIS

☐ Needs-based VA Pension
Pensión para Veteranos de Guerra en función a necesidades

☐ Child Care Assistance under Child Care and Development Block Grant
Asistencia con Guardería bajo el Programa CCDBG

☐ County Assistance, County Health Care, or General Assistance (GA)
Asistencia del Condado, Asistencia Médica del Condado, o Asistencia General (GA)

☐ Other / *Otros beneficios*

☐ Other / *Otros beneficios*



5. What are your monthly income sources? ¿Cuáles son sus fuentes de ingresos mensuales?

➤ My **take-home** pay is \$_____ in monthly wages.

Mi **pago neto** es \$_____ en sueldo mensual.

➤ I work as a _____ (your job title) for _____ (your employer).

Yo trabajo como _____ (título de su puesto) para
_____ (compañía o jefe).

➤ \$_____ is my total **monthly** income / son mis ingresos totales **al mes**.

These are my income sources. **Estas son mis fuentes de ingresos.**

➤ \$_____ in unemployment / en beneficios de desempleo.

I have been unemployed since _____ (date).

He estado desempleado desde _____ (indique fecha).

➤ \$_____ in public benefits / en beneficios de Asistencia Pública.

➤ \$_____ from people in my household other than my spouse / de ingresos de otras personas en mi hogar que no son de mi cónyuge.

➤ \$_____ from retirement or pension / de jubilación o pensión.

➤ \$_____ from tips or bonus / de propinas o bonos.

➤ \$_____ from disability / de discapacidad.

➤ \$_____ from worker's comp / de compensación al trabajador.

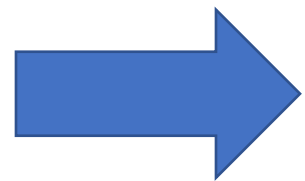
➤ \$_____ from social security / de seguro social.



- \$_____ from military housing / de vivienda militar.
- \$_____ from dividends, interest, or royalties / de dividendos, intereses, o regalías.
- \$_____ from child or spousal support / de manutención de menores o manutención conyugal recibida.
- Answer only if your spouse is not your opponent. Responda tan sólo si su ccónyuge no es parte contraria en esta causa legal.\$_____ from my spouse's income / de ingresos de mi cónyuge.
- \$_____ from other jobs/sources of income / de otros trabajos/ fuentes de ingresos.

Describe / describa:

Go to next page



Pase a la siguiente página

6. What is the value of your assets or property? ¿Cuál es el valor de sus bienes o propiedades?

My property includes: Mis bienes incluyen:	Value / Valor The value is the amount the item would sell for less the amount you still owe on it, if anything. El valor de sus bienes es la cantidad por la que la propiedad o pertenencia se vendería, menos el monto que aún se adeuda, si lo hubiera.
➤ Cash Dinero en efectivo	\$
➤ Bank accounts, other financial assets Cuentas bancarias, otros bienes financieros	
	\$
	\$
	\$
➤ Cars and boats (make and year) Automóviles, lanchas (modelo y año)	
	\$
	\$
	\$
➤ Other property like jewelry, stocks, land, a second house. (Do not list your homestead.) Otros bienes como joyas, acciones, terrenos, una segunda casa. (No indique su hogar familiar.)	
	\$
	\$
	\$
Total Value of Property Valor Total de Sus Bienes	\$



**7. What are your monthly expenses that are not deducted from your paycheck?
¿Cuáles son sus gastos mensuales que no son descontados de su cheque de sueldo?**

My monthly expenses are: Mis gastos mensuales son:	Amount Cantidad
➤ Rent/house payments; maintenance Alquiler/hipoteca; mantenimiento de casa	\$
➤ Food and household supplies Alimentos y artículos para el hogar	\$
➤ Utilities and telephone Luz, gas, agua y teléfono	\$
➤ Clothing and laundry Ropa y lavado de ropa	\$
➤ Medical and dental expenses Gastos médicos y dentales	\$
➤ Insurance (life, health, auto, etc.) Seguros (de vida, médico, de automóvil etc.)	\$
➤ School and childcare Escuelas y guarderías	\$
➤ Transportation, auto repair, gas Transportación, reparaciones de automóviles, gasolina	\$
➤ Child/Spousal support Manutención a Menores/Manutención Conyugal	\$
➤ Debt payments to (list): Pagos por deudas hechas a (indíquelos):	
	\$
	\$
➤ Wages withheld by court order Sueldo retenido por orden judicial	\$
➤ Other expenses (list): Otros gastos (indíquelos):	
	\$
	\$
Total Monthly Expenses Gastos Totales Mensuales	\$



8. Are there debts or other facts explaining your financial situation?
¿Hay deudas u otros factores que expliquen su situación económica?

My debts include (list debt and amount owed):

Mis duedas incluyen (indique deuda y la cantidad que debe):

	\$
	\$
	\$
	\$
	\$

If you want the court to consider other facts, such as unusual medical expenses, family emergencies, etc., attach another page to this form labeled "Exhibit: Additional Supporting Facts."

Si usted desea que el tribunal considere otros factores, tales como gastos médicos excepcionales, emergencias familiares, etc., adjunte al formulario otra hoja con esta información y bajo el título, "Anexo: Información Adicional de Apoyo."

9. Ability to Pay Court Costs. Declaración sobre su Habilidad de Pagar Costas de Tribunal

Check only one box. Seleccione tan solo una casilla.

- ☐ I cannot afford to pay court costs. No puedo pagar las costas de tribunal.
- ☐ I cannot furnish an appeal bond or pay a cash deposit to appeal a justice court decision, and I cannot afford to pay court costs.

No puedo aportar una fianza de apelación ni pagar un depósito en efectivo para apelar la decisión judicial de un magistrado, y no puedo pagar costas de tribunal.

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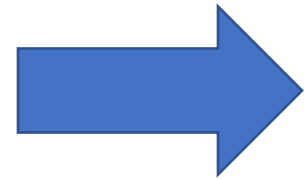
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10. Declaration/Affidavit. Declaración Escrita Bajo Juramento.

Fill out **only one** box. If you fill out the Declaration, you will not need to sign the form in front of a notary public. If you do not want to list your address for privacy or safety concerns, take the form and photo identification, and fill out the Affidavit box in front of a notary public.

Llene tan **solo una** opción. Si usted llena la Declaración, no necesitará firmar el formulario ante un notario. Si usted no quiere que aparezca su domicilio en el documento para conservar su privacidad o por motivos de su seguridad, lleve el formulario y una identificación con fotografía y llene la sección de la Declaración Escrita Bajo Juramento ante un Notario.

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Option 1 / Opción 1

Declaration: I declare under penalty of perjury that the foregoing is true and correct.

Declaración: Yo declaro bajo pena de perjurio que la información a continuación es correcta y verdadera.

➤ My name is / Mi nombre es

Maria-Alejandra O'Shaughnessy-Whitfield

➤ My date of birth is / Mi fecha de nacimiento es

____/____/____

➤ My address is / Mi domicilio es

1188 Upper Notch Crossing Road, Apartment 14B, Corpus Christi, Texas 78418-2214

Street, city, zip, country

Calle y número, ciudad, estado, código postal, país

➤

Signature

Firma

➤

Date (month, day, year)

Fecha (mes, día, año)

➤

County, state

Condado, estado

Go to next page



Pase a la siguiente página

Option 2 / Opción 2

Affidavit: I swear under penalty of perjury that the foregoing is true and correct.

Declaración Escrita Bajo Juramento: Yo juro bajo pena de perjurio, que lo que precede es correcto y verdadero.

You fill out this section.

Usted llena esta sección.

➤ Maria-Alejandra O'Shaughnessy-Whitfield

Your printed name

Su nombre en letra de molde

➤

Your signature

Su firma

The notary fills out this section.

El Notario llena esta sección.

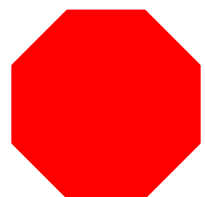
➤

Subscribed before me this day of

Juramentado y suscrito ante mí el día de hoy del mes de

_____, 20____

NOTARY
NOTARIO



WHAT THIS FORM IS FOR, WHAT FILING ACTUALLY COSTS, AND WHICH ROUTES IT SERVES

Prepared for: Maria-Alejandra O'Shaughnessy-Whitfield

WHAT THIS FORM IS. The Statement of Inability to Afford Payment of Court Costs, on the statewide bilingual form the Supreme Court of Texas approved in Misc. Docket No. 22-9090. You file it **WITH** your expunction petition, under Texas Rule of Civil Procedure 145, when you cannot afford the filing fee.

YOU ARE ENTITLED TO THIS FORM FOR FREE. Rule 145 requires the clerk to make it available **WITHOUT CHARGE AND WITHOUT YOUR HAVING TO ASK.** The committed record calls it the only genuinely statewide promulgated form in the entire Texas record-clearing workflow. The copy in this packet is that form; you may also simply ask the clerk.

WHICH ROUTES THIS SERVES. The same fee rules and the same waiver route govern all eight of these Texas expunction routes, which is why one form serves them all:

1. Expunction where **NO CHARGE WAS FILED** - arts. 55A.051 and 55A.052.
2. Expunction where the charge was **DISMISSED OR QUASHED** - arts. 55A.051 and 55A.053, including after a qualifying Class C deferred disposition.
3. Expunction where the **LIMITATIONS PERIOD HAS EXPIRED** - arts. 55A.051 and 55A.054.
4. Expunction after a **PARDON OR OTHER RELIEF ON THE BASIS OF ACTUAL INNOCENCE** - arts. 55A.003 and 55A.202.
5. Expunction after a **PARDON GRANTED FOR A REASON OTHER THAN ACTUAL INNOCENCE** - art. 55A.004.
6. Expunction on **MISTAKEN IDENTITY OR IDENTITY THEFT** - arts. 55A.006 and 55A.256.
7. Streamlined expunction order after a **SPECIALTY COURT DISMISSAL** - art. 55A.203.
8. Expunction of a **PRE-2021 UNLAWFUL CARRYING OF A HANDGUN** conviction - art. 55A.005.

You are on one of these. You need one copy of this form.

WHERE THE PETITION GOES, ON ALL EIGHT ROUTES. A verified ex parte petition, filed with the DISTRICT CLERK OF THE COUNTY OF ARREST or of the alleged offence, through eFileTexas, in person, or by mail where the clerk allows. It is a **NEW CIVIL ACTION** and receives a **NEW CAUSE NUMBER** - which is why the Statement's own first page tells you the Clerk's office fills the cause number in when you file.

WHAT FILING ACTUALLY COSTS. This changed recently and the old numbers are no longer reliable.

Article 102.006, the old expunction fee statute, was **REPEALED** by S.B. 1667 effective 1 September 2025, temporarily re-added by H.B. 16 of the 89th Legislature's 2nd Called Session with a built-in expiry, and permanently replaced by article 102.0061 effective 1 January 2026. **IF YOU HAVE READ THAT EXPUNCTION COSTS \$250 TO \$500, THAT RANGE COMES FROM THE REPEALED STATUTE AND THIS PACKET WILL NOT REPEAT IT.**

Under art. 102.0061(a) a DISTRICT COURT charges the fee that applies to filing an ex parte petition in a civil action in district court - the ordinary county civil filing fee, which is NOT a flat statutory amount. Under (b) a JUSTICE COURT or MUNICIPAL COURT OF RECORD charges a flat \$100.

SO ASK THE DISTRICT CLERK OF THE COUNTY YOU ARE FILING IN what the civil ex parte filing fee is there, before you go.

TWO PLACES THE FEE IS WAIVED WITHOUT THIS FORM. Article 102.0061(c) REQUIRES the fee to be waived where the expunction relates to an ACQUITTAL other than one described by art. 55A.151 and the petition is filed not later than the 30th day after the acquittal. Article 102.0061(d) REQUIRES waiver of the district-court fee where the entitlement arises under art. 55A.053(a)(2)(A) or (B). If either applies to you, say so at the counter and cite the article - you may not need this form at all.

THE COST THAT IS ACTUALLY IN YOUR CONTROL: \$25 PER PAPER-ONLY AGENCY. This one is worth more attention than the filing fee, because you decide it.

Article 55A.254(e) FORBIDS the clerk charging anything to transmit the petition or the notice of hearing ELECTRONICALLY. Article 55A.254(f) REQUIRES the clerk to charge \$25 FOR EACH LISTED ENTITY UNABLE TO RECEIVE AN ELECTRONIC TRANSMISSION. The same structure repeats at the ORDER stage under art. 55A.351(b-2) and (b-3).

So every paper-only agency you name in your petition is a direct \$25 cost to you, and it lands TWICE - once at the petition stage and once at the order stage. A list with ten paper-only agencies on it costs \$500 in transmission charges alone, which is more than the filing fee you are asking to have waived.

HOW TO KEEP THAT DOWN. Article 55A.253(c) requires EACH DISTRICT CLERK to compile and maintain, on the clerk's own website, a list of the agencies and entities that hold arrest records, WITH E-MAIL ADDRESSES. Ask for it by name; the clerk is not always expecting the question. Use the e-mail addresses. Deduplicate your list. A state or local agency with a listed e-mail address MUST accept electronic service.

FILLING THIS FORM IN. It is SWORN UNDER PENALTY OF PERJURY. On PAGE 2 your name, date of birth, address, telephone number and email are filled in for you, and the date of birth is printed month, day, year because that is the order the rule under that blank asks for. NOTHING FINANCIAL IS FILLED IN, and that is deliberate: a guessed figure on a sworn affidavit is far worse than a blank one. Take every number from pay statements, benefit letters and bills rather than from memory.

PAGE 11 ASKS FOR YOUR DATE OF BIRTH AGAIN, in three boxes under 'My date of birth is / Mi fecha de nacimiento es', and those three boxes are left for you to write. Copy them from page 2. They are not filled in for a mechanical reason rather than a legal one: on this form the month box is one form field with the notary's month on page 12, so filling your birth month would also write in the notary's blank.

The cause number on the first page is left blank because the form itself says so: 'The Clerk's office will fill in the Cause Number when you file this form.'

WHO SERVES WHOM - AND IT IS NOT YOU. On all eight routes the CLERK sends the petition and the notice of hearing, by certified mail return receipt requested or by secure e-mail, electronic transmission or fax. The court sets a hearing NOT EARLIER THAN THE 30TH DAY after the petition is filed and gives a copy of the petition and the notice to each official, agency or entity listed, OTHER THAN central federal depositories. On receipt, DPS notifies those itself - so you do not chase the FBI.

WHEN TO STOP AND GET HELP INSTEAD.

- [tx_exp_no_charge, tx_exp_dismissed, tx_exp_limitations, tx_exp_pardon_innocence, tx_exp_pardon_other, tx_exp_unlawful_carry, tx_exp_mistaken_identity, tx_exp_specialty_court] The state opposes the petition, or seeks retention of records under art. 55A.302.
- [tx_exp_no_charge, tx_exp_dismissed, tx_exp_limitations, tx_exp_pardon_innocence, tx_exp_pardon_other, tx_exp_unlawful_carry, tx_exp_mistaken_identity, tx_exp_specialty_court] The arrest produced multiple charges with mixed outcomes. State v. T.S.N. and Ex parte R.P.G.P. govern whether individual offences from one arrest can be expunged separately, and that analysis is not automated.
- [tx_exp_no_charge, tx_exp_dismissed, tx_exp_limitations, tx_exp_pardon_innocence, tx_exp_pardon_other, tx_exp_unlawful_carry, tx_exp_mistaken_identity, tx_exp_specialty_court] A felony from the same transaction is present or arguable, which moves the wait to three years and can defeat the petition.
- [tx_exp_no_charge, tx_exp_dismissed, tx_exp_limitations, tx_exp_pardon_innocence, tx_exp_pardon_other, tx_exp_unlawful_carry, tx_exp_mistaken_identity, tx_exp_specialty_court] The applicable limitations period is contested, or the participant wants full rather than partial expunction and the limitations analysis is not clear.
- [tx_exp_no_charge, tx_exp_dismissed, tx_exp_limitations, tx_exp_pardon_innocence, tx_exp_pardon_other, tx_exp_unlawful_carry, tx_exp_mistaken_identity, tx_exp_specialty_court] There is any absconding or bail-jumping history. Article 55A.154 makes an intentional or knowing absconder ineligible under arts. 55A.052(a)(1) to (3) and 55A.054, and a participant may not self-identify the fact.
- [tx_exp_no_charge, tx_exp_dismissed, tx_exp_limitations, tx_exp_pardon_innocence, tx_exp_pardon_other, tx_exp_unlawful_carry, tx_exp_mistaken_identity, tx_exp_specialty_court] The arrest may have been made on a community-supervision violation warrant under art. 42A.751(b), which art. 55A.153 bars.
- [tx_exp_no_charge, tx_exp_dismissed, tx_exp_limitations, tx_exp_pardon_innocence, tx_exp_pardon_other, tx_exp_unlawful_carry, tx_exp_mistaken_identity, tx_exp_specialty_court] Venue is unclear because the arrest and the alleged offence occurred in different counties.
- [tx_exp_no_charge, tx_exp_dismissed, tx_exp_limitations, tx_exp_pardon_innocence, tx_exp_pardon_other, tx_exp_unlawful_carry, tx_exp_mistaken_identity, tx_exp_specialty_court] Immigration consequences.
- [tx_exp_no_charge, tx_exp_dismissed, tx_exp_limitations, tx_exp_pardon_innocence, tx_exp_pardon_other, tx_exp_unlawful_carry, tx_exp_mistaken_identity, tx_exp_specialty_court] The participant wants to attack the underlying case rather than clear it.
- [tx_exp_no_charge] Whether prosecuting on the offence is still possible, which decides partial versus full expunction under art. 55A.302(c).
- [tx_exp_no_charge] Whether a Class C deferred disposition counts as court-ordered community supervision for the art. 55A.051(3) carve-out.
- [tx_exp_dismissed] The dismissal reason is not stated on the face of the dismissal order.

- [tx_exp_dismissed] The participant completed deferred adjudication rather than receiving a dismissal.
- [tx_exp_dismissed] Whether the pretrial diversion was authorised under Government Code 76.011 rather than being an informal county programme.
- [tx_exp_limitations] The limitations period itself, including tolling. This is a legal conclusion rather than a lookup, and the packet does not compute it.
- [tx_exp_limitations] Any question whether the limitations clock was tolled by absence from the state, a pending indictment, or anything else.
- [tx_exp_pardon_innocence] The pardon does not say on its face that it was granted on the basis of actual innocence.
- [tx_exp_pardon_innocence] The underlying clemency or habeas relief is still being sought, which is outside scope.
- [tx_exp_pardon_other] The document is not a pardon, or its type cannot be confirmed.
- [tx_exp_unlawful_carry] The offence date or the statutory subsection cannot be confirmed from court records.
- [tx_exp_mistaken_identity] Any dispute about whether the applicant is in fact the arrested person.
- [tx_exp_mistaken_identity] The prosecutor declines to verify the application, which stops the matter before it reaches any court.
- [tx_exp_mistaken_identity] The applicant cannot obtain authenticated fingerprint records.
- [tx_exp_specialty_court] The attorney representing the state does not consent, which closes the streamlined route.
- [tx_exp_specialty_court] The 30-day window has closed.
- [tx_exp_specialty_court] A prior expunction was granted on the same specialty-court ground.

WHAT THIS FORM IS NOT. It is not the expunction petition. It does not ask for expunction and it does not start a case. It asks the court to let you file without paying the fee, and it goes WITH the petition your route requires.

Route: obligation:track-only:TX:tx_exp_mistaken_identity ;
 obligation:track-only:TX:tx_exp_pardon_other ; obligation:track-only:TX:tx_exp_specialty_court ;
 obligation:track-only:TX:tx_exp_unlawful_carry ;
 obligation:track-pathway:TX:tx_exp_dismissed:expunction-after-qualifying-class-c-deferred-disposition ;
 obligation:track-pathway:TX:tx_exp_dismissed:expunction-after-qualifying-dismissal-or-quash ;
 obligation:track-pathway:TX:tx_exp_limitations:expunction-for-arrest-with-no-charge-filed-after-the-limitations-period ;
 obligation:track-pathway:TX:tx_exp_no_charge:expunction-for-arrest-with-no-charge-filed-after-the-limitations-period ;
 obligation:track-pathway:TX:tx_exp_pardon_innocence:expunction-after-pardon-or-actual-innocence-relief